

TEMPLATE P26 · INCIDENT RESPONSE PLAN

Incident response plan

Prepares the response to incidents affecting an AI system: what is considered an incident, how its severity is classified, who acts, how it is contained and which reports must be checked.

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01

Instructions for use

Aspect	Guidance
When it is used	It is prepared in phase 5 (prerequisite for the P23 sign-off) and approved at the start of phase 6. It is reviewed after each S1 or S2 incident and at each R6.
Who completes it	AI Operations Owner, with information security, data protection and the AI Risk Owner.
Who verifies it	AI Office at Lite intensity; AI Auditor at Enterprise intensity.
At which <i>gate</i> it is reviewed	G5 (existence and adequacy) and R6 (currency and results of drills).

Aspect	Guidance
Lite versus Enterprise	Lite may omit the fields marked (Enterprise) . The check of regulatory reports (block 8) is never omitted.
Tool	T08 Nonconformity and incident register.
Relationship	P17 Human oversight · P18 Security and kill switch · P19 Rollback · P24 Operations manual · P25 Alerts · P27 Incident and change log · documents 35, 37 (Nonconformities and incidents) and 52.

Rules:

- The **severity criteria, reporting time limits and the full process** are set out in document 37. This plan applies them to the specific system; it does not set its own regulatory time limits.
- This plan is integrated into the company's general incident management process (security, continuity, data protection); it does not create a parallel circuit.
- A serious incident not reported when reporting was required is a **critical** nonconformity (01 §12).
- In case of doubt about severity, the incident is classified at the higher level and reviewed afterwards.

This template does not constitute legal advice. Reporting obligations and their time limits must be verified with legal counsel at the time of the incident (reference consultation date for the framework: September 2026).

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Identification

Field	Content	Guidance
Initiative code		IA-AAAA-NNN (T01).
AI system(s)		Identifier in the inventory (T02).
Regulatory classification		Prohibited · High risk · Transparency obligations · Minimal risk · Out of scope · Pending classification.
Role of the company in relation to the system		Provider · Deployer · Both · To be determined. It determines the reporting obligations (document 34).
Subject to DORA ?		Yes · No · To be determined.

Field	Content	Guidance
Subject to NIS2 (according to national transposition)?		Yes · No · To be determined.
Does it process personal data?		Yes · No.
Intensity		Lite · Enterprise.
Document version		
Author		Role and name.
Date		DD-MM-YYYY.
Document status		Draft · Submitted for verification · Verified · Approved · Superseded.

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What is considered an incident for this system

Type of incident: Performance degradation · Erroneous output with impact · Discriminatory or biased output · Information leakage · Unauthorised action by an agent · Prompt injection or manipulation · Unavailability · Regulatory breach · Misuse of the system · Supplier incident.

Type	Does it apply to this system? (Yes · No)	Specific example for this system	Planned detection (P25 alert or other route)
Unauthorised action by an agent <i>(illustrative example)</i>	Yes	The agent issues a refund above the limit	AL-02

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Severity

Common framework scale: **S1 Critical** · **S2 High** · **S3 Medium** · **S4 Low**. The full criteria are set out in document 37 and prevail over this guidance.

Severity	Guidance	Example for this system
S1 Critical	Includes any possible serious incident under the EU AI Act and major incidents under DORA or NIS2 where applicable.	
S2 High	Relevant impact on people, customers, operations or compliance, contained or limited.	
S3 Medium	Limited impact, with no relevant effect on people or on reporting obligations.	
S4 Low	No appreciable impact; an anomaly that should be recorded.	

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Roles during the incident

Role	Holder	Deputy	Activated in	Responsibility
Incident coordinator			S1–S4	Leads the response and decides on containment. Normally the AI Operations Owner.
Technical lead			S1–S3	Diagnosis, technical containment and rollback.
Information security			Security and agent incidents	Attack analysis and preservation of evidence.
Data protection			If personal data are involved	Assess personal data breach and the rights of affected individuals.
AI Risk Owner			S1–S2	Assess regulatory obligations and the effect on the risk register.
Communication (Enterprise)			S1–S2	Coordinated internal and external messages.
AI Sponsor			S1–S2	Business decisions and escalation to governing bodies.
Incident recording			S1–S4	Timeline, decisions and evidence in P27.

Response phases

Internal target times are set by the company; they do not replace the regulatory time limits in document 37.

Phase	What is done	Owner	Internal target time S1	Internal target time S2	Record
Detection	Receive alert or notification; open incident	On-call			P27
Classification	Type and initial severity	Coordinator			P27
Containment	Apply the actions in block 7	Coordinator and technical lead			P27
Reporting check	Review block 8	Risk and data protection			P27
Resolution	Correct the immediate cause	Technical lead			P27
Recovery	Return to normal operation with authorisation	Coordinator			P27
Closure and lessons	Root cause, corrective actions, lessons	Coordinator and risk			P27 · P12

Prepared containment actions

Action	When it is applied	Who can execute it	Procedure
Kill switch	Unauthorised action, injection with effect, leakage in progress		P18 block 9
Reduce the autonomy level	Degradation with risk of impact		P19
Roll back to previous version	Failure attributable to a recent change		P19

Action	When it is applied	Who can execute it	Procedure
Disable an agent tool or permission	Abuse of a specific tool		P18 block 5
Revoke credentials	Identity compromise		P18 block 4
Withdraw or correct published content	Erroneous or inappropriate content visible to third parties		
Preserve logs and evidence	Always in S1 and S2		

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Regulatory and contractual reports to be verified

Check boxes. For each incident, it is verified whether they apply; time limits are taken from document 37 and confirmed with legal counsel. This table does not assert time limits.

☐ Report to be verified	Reference	Does it apply? (Yes · No · To be determined)	Who decides	Who reports	Time limit confirmed in document 37 and verification date	Evidence
☐ Serious incident involving a high-risk AI system	EU AI Act (obligations of the provider and of the deployer; document 34)					
☐ Information to the provider of the AI system	EU AI Act and contract (if the company is the deployer)					
☐ Personal data breach to the supervisory authority	GDPR , Article 33					
☐ Communication to data subjects	GDPR, Article 34					
☐ Major ICT-related incident	DORA					

☐ Report to be verified	Reference	Does it apply? (Yes · No · To be determined)	Who decides	Who reports	Time limit confirmed in document 37 and verification date	Evidence
☐ Significant incident	NIS2 and national transposition					
☐ Sector-specific reports	Company's sector regulation					
☐ Contractual obligations towards customers or suppliers	Contracts					
☐ Communication to affected individuals not required by law but appropriate (Enterprise)	Company policy					

The report models, the reasoned decision not to report and the communications are in P51.

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Internal escalation

Severity	Who is informed	Internal time limit	Reference
S1	AI Committee and board committee, in addition to the roles in block 5		Document 37
S2	AI Committee and sponsor		Document 37
S3	AI Product Owner and AI Office		Document 37
S4	Record in P27		Document 37

If the incident reveals a breach of the framework (control disabled, unapproved change, gate skipped), a nonconformity with code NC-AAAA-NNN is also opened (P50, document 37).

Drills

Date	Scenario	Participants (roles)	Time to containment	Result (Passed · Passed with observations · Not passed)	Improvement actions
<i>(illustrative example)</i>	A document with hidden instructions causes an unauthorised external transmission	On-call, security, data protection, coordinator	35 minutes	Passed with observations	Data protection had no reachable deputy; one is designated

At Enterprise intensity, at least one drill should be carried out before G5 and repeated at the frequency set by the company.

Quality criteria

Formal G5 and R6 criteria in document 21; incident process in document 37.

#	Check	Status (Met · Not met · Not applicable · Pending)
1	The applicable incident types have a specific example and a detection route.	
2	Severity uses the S1–S4 scale and refers to the criteria in document 37.	
3	All roles have a holder and a deputy.	
4	Containment actions are prepared and linked to P18 and P19.	
5	Regulatory reports are identified as boxes to be verified, without unconfirmed time limits.	
6	Internal escalation reaches the AI Committee and the board committee in S1.	

Check

7 At least one drill has been carried out (Enterprise).

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Approval and verification

Function	Role	Name	Date	Signature or reference
Author	AI Operations Owner			
Review	Information security			
Review	Data protection			
Clearance	AI Risk Owner			
Verifier	AI Office (Lite) · AI Auditor (Enterprise)			

Segregation of duties: the verifier is not part of the team that builds or operates the system.

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Version control

Version	Date	Changes
0.1	16-09-2026	First version of the template.

External sources cited

Links to the official or primary source, checked before publication. Always verify the version in force on the date of use.

Directive (EU) 2022/2555 of the European Parliament and of the Council of 14 December 2022 on measures for a high common level of cybersecurity across the Union (NIS 2 Directive) · <http://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX:32022L2555>

[s://eur-lex.europa.eu/eli/dir/2022/2555/oj/eng](https://eur-lex.europa.eu/eli/dir/2022/2555/oj/eng) · Parlamento Europeo y Consejo de la UE · 14-12-2022

Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation)

· <https://eur-lex.europa.eu/eli/reg/2016/679/oj/eng> · Parlamento Europeo y Consejo de la UE · 27-04-2016

Regulation (EU) 2022/2554 of the European Parliament and of the Council of 14 December 2022 on digital operational resilience for the financial sector (DORA) · <https://eur-lex.europa.eu/eli/reg/2022/2554/oj/eng> · Parlamento Europeo y Consejo de la UE · 14-12-2022

Regulation (EU) 2024/1689 of the European Parliament and of the Council of 13 June 2024 laying down harmonised rules on artificial intelligence (Artificial Intelligence Act) · <https://eur-lex.europa.eu/eli/reg/2024/1689/oj/eng> · Parlamento Europeo y Consejo de la UE · 13-06-2024
